AGREEMENT

between

EASTPOINTE 38TH DISTRICT COURT,

THE CITY OF EASTPOINTE

and

TECHNICAL, PROFESSIONAL AND OFFICEWORKERS
ASSOCIATION OF MICHIGAN

Effective July 1, 2023 to June 30, 2026

INDEX

THIS AGREEMENT entered into on this 1st day of July, 2023 between the 38th District Court (hereinafter referred to as the Employer), the City of Eastpointe (hereinafter referred to as the Funding Unit) and TPOAM, 27056 Joy Road, Redford, Michigan 48239 (hereinafter referred to as the Union).

PURPOSE AND INTENT: The general purpose of this Agreement is to set forth terms and conditions of employment and to promote orderly and peaceful labor relations for the mutual interest of the Employer, the employees and the Union.

In accordance with City of Eastpointe City Council Resolution 1482 and MCL Section 600.9938 of Public Acts 681, the parties recognize that the interest of the community and job security of the employees depend upon the Employer's success in establishing a proper service to the community.

To these ends, the Employer and the Union encourage to the fullest degree friendly and cooperative relations between the respective representatives at all levels and among all employees.

ARTICLE I
RECOGNITION -- Employees Covered

1.1: Pursuant to and in accordance with all applicable provisions of Act 379 of the Public Acts of 1965, as amended, the Employer does hereby recognize the Union as the exclusive representative of all regular, full-time 38th District Court Clerical employees for the purpose of collective bargaining in respect to rates of pay, wages, hours of employment and other conditions of employment for the term of this Agreement, excluding Court Administrator and all other Court employees.

ARTICLE II
AID TO OTHER UNIONS

2.1: The Employer will not aid, promote or finance any labor group or organization which purports to engage in collective bargaining or make any agreement with any such group or organization for the purpose of undermining the Union.

ARTICLE III
UNION SECURITY -- Requirements of Union Membership

3.1: Membership in the Union is not compulsory. Employees have the right to join or not join, maintain, or drop their membership in the Union. Neither party to this Agreement shall expect, pressure, nor discriminate against any employee with regard to such matters. The Union is required to represent all employees in the bargaining unit fairly and equally without regard to whether or not the employee is a member of the Union.

3.2: All present employees who are members of the bargaining unit on the effective date of this Agreement, shall as a condition of employment become obligated to either join the Union or pay a service fee in an amount equal to that portion of the Union membership dues which is related to the negotiation and administration of this Agreement. For present employees, this obligation shall commence on the date of execution of this Agreement; for future employees who become members of the bargaining unit, the obligation shall commence on the thirtieth (30th) day following their date of entry into the bargaining unit.

3.3: Any employee who refuses to comply with the terms of this article shall be subject to removal from the bargaining unit upon thirty (30) days written notice to the Employer from the Union.

3.4: An employee who shall tender an initiation fee (if not already a member) and the periodic dues uniformly required as a condition of acquiring or retaining membership shall be deemed to meet the conditions of this section.

3.5: Employees shall be deemed to be members of the Union within the meaning of this section if they are not more than sixty (60) days in arrears in payment of membership dues.

3.6: To the extent that the laws of the State of Michigan permit, it is agreed that:

A. Each employee, who is or becomes a member of the Union, or a service fee payer, may sign an authorized dues/service fee deduction card and shall do so with the understanding that the deductions shall continue for the length of the contract or until such time as the employee gives written notice to the Employer and Union revoking the authorization.

B. The Union will protect, save harmless and indemnify the employer from any and all claims, demands, suits and other forms of liability by reason of action taken by the employer for the purpose of complying with this article of agreement.

C. Deductions for any calendar month shall be remitted to the TPOAM and sent to 27056 Joy Road, Redford, MI 48239-1949. In the event that a refund is due to any employee for any sums deducted from wages and paid to the Union, it shall be the responsibility of such employee to obtain appropriate refund from the Union.

D. The City shall not be liable for the remittance or payment of any sums other than those constituting actual deductions made. If the City fails to make a deduction for any employee as provided, it shall make that deduction from the employee's next pay in which such deduction is normally deducted after the error has been called to its attention by the employee or the Union.

E. If there is an increase or decrease in Union payroll deductions, such charges shall become effective upon the first payroll cycle following the presentation of a signed deduction statement.

F. The employer agrees to deduct the Union membership dues or service fees once each month from the pay of the employees who have requested that such deductions be made.

ARTICLE IV
UNION DUES AND INITIATION FEES

4.1 A bargaining unit employee may sign an authorization for deduction of dues/fees for membership in the Union. The authorization for deduction of dues/fees may be revoked by the bargaining unit member upon written notice to the Employer, with copy to the Union.

4.2: The amount of dues/fees shall be designated by written notice from the Union to the Employer. If there is a change in the amount of dues/fees, such change shall become effective the month following transmittal of the written notice to the Employer. The Employer shall deduct the dues/fees once each month from the pay of the employees that have authorized such deductions.

4.3: Deduction of dues/fees shall be remitted to the Union at 27056 Joy Rd., Redford, MI., 48239-1949. In the event a refund is due an employee for any sums deducted from wages and paid to the Union, it shall be the responsibility of such employee to obtain the appropriate refund from the Union.

4.4: If an authorized deduction for an employee is not made, the Employer shall make the deduction from the employee's next pay after the error has been called to the Employer's attention by the employee or Union.

4.5: The Union will protect, save harmless and indemnify the Employer from any and all claims, demands, suits and other forms of liability by reason of action taken by the Employer for the purpose of complying with this article of the agreement.

4.6: Unless otherwise provided in this article, all matters pertaining to a bargaining unit employee establishing or reestablishing membership in the Union, including requirements established by the Union for providing paid services to non-union bargaining unit employees, shall be governed by the internal conditions mandated by the Union pursuant to its authority under section 10 (2) of the Public Employment Relations Act.

ARTICLE V
UNION REPRESENTATION

5.1: It is recognized that the principle of proportional representation which reflects the increase and decrease in the work force is a sound and sensible basis for determining proper representation.

ARTICLE VI
STEWARDS AND ALTERNATE STEWARDS

6.1: Employees shall be represented by one (1) Steward and one (1) Alternate Steward. The Steward and Alternate Steward shall be regular full time employees of the Court. Either the Steward or Alternate Steward shall attend all grievance meetings, special conferences, and negotiations.

6.2: The Union shall keep the Employer informed, in writing, of who is its Steward and Alternate Steward.

ARTICLE VII
SPECIAL CONFERENCES

7.1: Special Conferences will be arranged between the Steward and/or Business Representative of TPOAM and the Employer. Such meetings shall be between the Steward and the Business Representative of TPOAM or their designated replacements up to two (2) representatives of the Employer. Arrangements for such special conference shall be made in advance. Matters taken up in special conferences shall be placed on the agenda at the request of either party. Conferences shall be held between the hours of 9:00 a.m. and 4:00 p.m. The members of the Union shall not lose time or pay for the time spent in such special conferences. This shall only include overtime if accrued during an Employer-requested conference upon mutual agreement. This meeting may also be attended by additional representatives of the Local Union or Employer. The Union representative may meet at a place designated by the Employer on the Employer's property up to one-half (1/2) hour preceding a meeting with the representatives of the Employer for which a written or oral request has been made.

ARTICLE VIII
GRIEVANCE PROCEDURE

8.1: GRIEVANCE PROCEDURE - A grievance is defined as an alleged violation of a specific provision(s) of this Agreement. A grievance may be filed by an employee, a group of employees, or by the Union. Grievances shall be processed in accordance with the following steps:

Step 1. An employee having a grievance has an obligation to notify the Court Administrator and he/she will also notify his/her Steward. Upon the Steward's arrival, the two shall be allowed a reasonable amount of time to confer so that the grievance may be explained to the Steward. If in the Steward's opinion proper cause for the grievance exists, a meeting on such shall take place between a Grievant and/or the Steward on the one hand and the Court Administrator on the other. The results of the meeting shall be reduced to writing and signed by the Court Administrator, the Steward, and the Grievant or Grievants. If the grievance is against the Court Administrator, the grievance will be presented to the Chief Judge (Step 2).

Sufficient time will be allotted during work hours to provide for normal investigation and complete processing of grievances.

In the event that the Union is dissatisfied with the results of the meeting with the Court Administrator on the grievance, then the Union shall have the right to submit such grievance in writing, and signed by the Grievant/Grievants and Steward, to the Court Administrator within fourteen (14) calendar days after the aforementioned meeting. The Court Administrator shall thereupon have fourteen (14) calendar days to respond to the grievance, in writing, setting forth his/her position on the matter. If the Court Administrator fails to respond in writing in the allotted time period, then the grievance will be automatically advanced in Step 2.

Step 2. In the event the grievance is not disposed of through Union acceptance of the Court Administrator's answer, the Union shall have the right to appeal the decision to the Chief Judge within fourteen (14) calendar days after receipt of the Chief Judge's written position on the issue.

A meeting on the subject shall then take place within fourteen (14) calendar days after receipt by the Chief Judge of the Union's appeal notice. This Step 2 meeting shall take place between the Local Union Business Representative, the Union Steward of the Union on the one hand and the Chief Judge or any other representative designated by the Employer on the other hand. The Chief Judge shall render a written decision on the dispute to the Union within fourteen (14) calendar days after the occurrence of said meeting.

In the event that the grievance is not resolved or that the Chief Judge does not respond to the grievance within the specified time limits, the Union may move the grievance to Step 3 (Arbitration).

If the Union elects to have the grievance processed to Step 3, the grievance shall be referred to the TPOAM's Grievance Panel to determine whether the grievance will be arbitrated. The Union will notify the Chief Judge within fourteen (14) calendar days of receipt of the Chief Judge's Step 2 answer that the grievance has been referred to the TPOAM Grievance Panel. The Employer will be notified within sixty (60) calendar days from the Union's notice of the referral as to whether the grievance will be processed to Step 3.

<u>Step 3</u>. Either party may propose a list of Arbitrators to consider. In the event the parties cannot agree on an Arbitrator from a proposed list, the standard Federal Mediation and Conciliation Service procedure shall prevail unless the parties mutually agree to process the grievance through the American Arbitration Association. The decision of said Service on the grievance shall be binding on both parties to this Agreement. The Service fee shall be borne equally by the parties.

A. Any grievance not appealed by the Union within sixty (60) calendar days of the Chief Judge's answer will be considered settled on said answer.

B. The time limits specified hereinafter for movement of grievances through the process shall be strictly adhered to and may be relaxed or extended only by mutual consent of the parties in writing.

C. Only those Stewards designated for acting for those employees in their particular work unit shall be recognized by the Employer as the proper Stewards to speak for an employee.

D. Grievances shall be filed within fifteen (15) calendar days of the event, occurrence or knowledge of the facts giving rise to the grievance.

E. The Grievant and/or Grievants shall have the option of attending all meetings pertaining to their grievance and shall not lose time or pay for attending such meetings during normal working hours. In the case of Class Action Grievances, the Steward shall sign the grievance and represent the Class.

F. The arbitrator shall have the authority and jurisdiction to apply the facts surrounding a grievance to the applicable contract language, but in no case shall the arbitrator have the authority or jurisdiction to substitute his/her own interpretation of contract language.

G. Both parties agree to be bound by the award of the Arbitrator and that the cost of any arbitration proceeding under this provision shall be borne equally between the parties.

8.2: Emailed communications from the Employer to the Union and the Union to the Employer, with a proper reply, may serve as "written", "in writing", or "written notice" where referenced in the CBA.

ARTICLE IX
COMPUTATION OF BACK WAGES

9.1: No claim for back wages shall exceed the amount of regular straight time wages the employee would have earned less any unemployment compensation benefits received by the employee during the period in question.

ARTICLE X
DISCHARGE, SUSPENSION AND DISCIPLINE

10.1: Notice of Discharge, Suspension, or Discipline. The Employer agrees, upon the discharge, suspension or written reprimand of an employee, to notify the employee and the employee's Steward of such in writing.

10.2: The discharged, suspended or disciplined (by written reprimand) employee shall be allowed reasonable time with pay to discuss his/her discharge, suspension, or discipline with the employee's Steward, and the Employer shall make available an area where such may be discussed. Immediately upon request, the Employer or his/her designated representative shall discuss the discharge, suspension, or discipline with the employee and the Steward. At the discretion of the Employer and after consultation with the Union, the meeting may be scheduled at a site other than the employee's normal work place.

10.3: Appeal of Discharge, Suspension, or Discipline. Should the discharged, suspended or disciplined employee consider the discharge, suspension or discipline to be improper, a grievance shall be presented in writing through the Steward to the Employer within seven (7) calendar days of the discharge, suspension or discipline.

Said grievance shall bypass the first step of the grievance procedure and will be automatically submitted to the second (2nd) step of the grievance procedure.

10.4: Use of Past Record. In imposing any discipline on a current charge, the Employer will not take into account any prior infractions which occurred more than twenty-four (24) months previously except for suspensions of over five (5) days for similar type of offenses which will not be taken into account if they occurred more than thirty-six (36) months previously. When determining the amount of elapsed time referred to in this paragraph, only time spent physically on the job will be counted.

10.5: The Employer will make every reasonable effort to take action in a disciplinary matter within a reasonable period of time after the facts of an incident have been properly investigated.

ARTICLE XI
SENIORITY -- Probationary Employees

11.1: Employees shall be subject to a probationary period of six (6) months of actual work in a classification covered by this Agreement. A probationary employee may be laid off or terminated at the sole discretion of the Court and without recourse to the Grievance Procedure.

11.2: Probationary employees shall be considered as terminated rather than laid off in the event of a reduction in work force, and there shall be no requirement for the Court to rehire.

ARTICLE XII
SENIORITY LISTS

12.1: Seniority shall be defined, for the purposes of this Agreement, to mean the length of an employee's continuous service with the Court, in positions included within the bargaining unit, after the employee has completed the probationary period. Upon the completion of the probationary period, the employee shall be placed on the seniority list as of the first day worked.

In the event more than one employee has the same first day worked, the Union shall conduct a drawing among the affected individuals to determine the correct position on the seniority list. The Union shall give the Court the correct listing on the seniority list.

If an employee is laid off or on an unpaid leave of absence, excluding a health leave of absence, for more than thirty (30) calendar days, then for each day in excess of thirty (30) days, the employee's date of hire and accordingly his/her seniority date shall be moved forward one (1) day. For employees on an approved unpaid health leave of absence for more than sixty (60) calendar days, then for each day in excess of the sixty (60) calendar days, the employee's date of hire and accordingly his/her seniority date, shall be moved forward one (1) day.

12.2: No seniority employee shall be discharged without just cause. This Section shall be subject to the Grievance Procedure.

12.3: In the event the Court elects to lay off employees in a given classification, first all non-regular part-time, temporary (excluding temporary employees hired and probationary employees in the affected classification shall be laid off prior to seniority employees. The employees shall be laid off according to seniority and ability to perform the work within the affected classification. If the ability to perform the work is equal among the employees in the affected classification, seniority shall prevail; provided, however, an employee laid off from a classification may exercise his/her Court-wide seniority to bump an employee with less seniority in a classification he/she previously held if the employee had previously completed one (1) year of work satisfactory to the Court in that classification. When a position within a classification is declared vacant by the Court, then the employee with the highest seniority laid off from that classification shall be the first employee recalled.

12.4: During layoff, neither wages nor fringe benefits will be paid, nor will sick days or salary increments accrue, but upon recall, unused sick days held at the start of the layoff shall be reinstated.

12.5: In the event an employee on layoff is mailed a notice of recall to his/her last known address on file with the Court, and such employee does not notify the Court Administrator, in writing, by Certified Mail, Return Receipt Requested, within five (5) days after such offer of his/her acceptance, then such employee shall have no further rights of reinstatement unless approved by the Court in writing. It is understood that it is the employee's responsibility while on layoff to keep the Court Administrator informed, in writing, of his/her current address.

12.6: It shall be the responsibility of each employee to notify the Court Administrator of any change of address or telephone number. The employee's address and telephone number as it appears on the Court's records shall be conclusive when used in connection with all notices to employees.

12.7: An employee who is voluntarily transferred to a job outside the bargaining unit shall have his/her seniority frozen. This clause shall not be construed to limit the Court's right to terminate the employee for any reason while assigned to a job outside the bargaining unit and the employee shall have no right to return to the bargaining unit or to process any grievance under the Grievance Procedure.

12.8: An employee shall be terminated and lose his/her seniority rights if he/she:

A. Quits;

B. Is a probationary employee and is discharged;

C. Is a seniority employee and is discharged for just cause, and such is not reversed in the Grievance Procedure;

D. Is laid off for a period of one (1) year or the length of the employee's seniority at the time of layoff, whichever is greater;

E. Fails to report for work at the designated time after notice of recall;

F. Fails to notify the Court of his/her acceptance, in writing, by Certified Mail, Return Receipt Requested, within five (5) days after notice of recall;

G. Is absent for more than two (2) consecutive working days without a valid reason for the absence;

H. Is absent for more than two (2) consecutive working days without notice to the Court Administrator, or their designee;

I. Fails to return for an authorized leave of absence, vacation or sick leave at the designated time, unless a designated time has been mutually extended in writing by the employee and the Court.

ARTICLE XIII
LOSS OF SENIORITY

13.1: An employee shall lose seniority for the following Reasons only:

A. Whenever an employee is promoted out of the bargaining unit to a full-time position within the Employer, the employee shall maintain seniority in that bargaining unit for a period not to exceed six (6) months. If the promoted employee returns to the bargaining unit, he/she shall continue at that time to further accrue seniority accumulated at time of promotion.

B. The employee is discharged and the discharge is not reversed through the procedure set forth in this Agreement.

C. The employee is absent for five (5) consecutive working days without notifying the Employer and without having an acceptable reason for his/her absence. In proper cases, exceptions may be made at the discretion of the Chief Judge. After such absence, the Employer will send written notification to the employee at his/her last known address that he/she has lost his/her seniority and his/her employment has been terminated. If the disposition made of any such case is not satisfactory, the matter may be referred to the grievance procedure.

D. If the employee does not return to work when recalled from layoff as set forth in the recall procedure, in proper cases, exceptions may be made at the discretion of the Chief Judge.

E. Does not return at the expiration of a leave of absence.

F. The employee resigns or retires.

G. The employee is laid off for three (3) years or the length of his/her seniority, whichever is less.

ARTICLE XIV
SUPPLEMENTAL AGREEMENTS

14.1: All supplemental agreements shall be subject to approval of the Employer and the "Membership of the Local Union." They shall be approved or rejected within a period of ten (10) days from the time that the parties sign the supplemental agreement(s). If no action is taken on the Supplemental Agreement within the ten (10) day period, the Supplemental Agreement shall be considered null and void.

ARTICLE XV
LAYOFF DEFINED

15.1: A layoff is defined as the involuntary separation of an employee or employees from the classified service of the Court resulting from a reduction in the workforce. Temporary and part time employees who are performing work in the classification and department to be affected by the workforce reduction shall be laid off first, then probationary employees in the affected classification, and then seniority employees. If it becomes necessary to lay off seniority employees, those with the least total Court seniority, as defined in Article 11, will be laid off first. Employees may have the option to exercise their total Court seniority to bump or accept the layoff.

A reduction in force is defined as the reduction of the number of employees in a classification.

Employees affected by a reduction in force may exercise their total Court seniority and if there are no less senior employees in that classification, they may bump into another classification within the bargaining unit that is of equal or lower pay rate, provided the bumping employee possesses the skill, ability and qualifications to perform the work required for the position to which he/she is bumping without further training.

15.2: Employees laid off shall be placed on a recall list for a period of three (3) years or the length of their total Court seniority at the time of the layoff, whichever is less. The Employer shall not hire any new regular, full-time and/or part time employees into classifications from which bargaining unit members have been laid off as long as such persons remain on the recall list.

15.3: Employees to be laid off for an indefinite period of time will have at least fifteen (15) working days' notice of layoff; notice will also be given to the Union. The Employer will meet with the Union, if requested, prior to the layoff date.

ARTICLE XVI
RECALL PROCEDURE

16.1: When the working force is increased after a layoff, a laid off employee will first be given the opportunity to return, according to his/her total Court seniority, to the position he/she held prior to the reduction of the work force provided the former position is one of the positions to be filled by recall. Employees who were laid off will then be recalled according to Court seniority.

16.2: Notice of recall shall be sent to the employee at his/her known address by certified mail. If an employee fails to report for work within fifteen (15) calendar days from date of delivery or attempted delivery of notice of recall, he/she shall be considered as "quit." A copy of each notice of recall will be given to the Union.

ARTICLE XVII
TRANSFER OF EMPLOYEES

17.1: If an employee is transferred to a position under the Employer not included in the bargaining unit and is thereafter transferred again to a position within the unit, he/she shall have accumulated total seniority while working in the position from which he/she was transferred. An employee transferred under the above circumstances shall retain all rights accrued for the purpose of any benefits provided for in this Agreement, except, if transferred for a period of over six (6) months.

17.2: The Employer agrees that in any movement of work not covered by this Agreement, the Employer agrees that he/she will meet to discuss the movement with the Union in order to provide for the protection of the seniority of the employees involved.

ARTICLE XVIII
VACANCIES

18.1: A vacancy occurs within the bargaining unit when there is an unfilled position that the Employer desires to fill.

18.2: Vacancies within the bargaining unit will be posted for a period of five (5) working days. The posted notice shall set forth the minimum requirements for the position. Employees interested in such positions shall apply in writing during the posting period. The Employer may fill the vacancy with any employee during the posting period.

18.3: All assignments within a department shall be made at the sole discretion of the Chief Judge or designee.

18.4: All promotions to positions within the bargaining unit shall be made in accordance with the Personnel Rules and Regulations of the 38th District Court.

18.5: If a 38th District Court bargaining unit member applies for a vacancy, such employee will be given preference over a candidate from outside the bargaining unit when they are equally well qualified.

18.6: An employee who is promoted shall be granted a six (6) month trial period to determine his/her ability to perform the job. An employee who is voluntarily transferred shall be granted a sixty (60) day trial period to determine his/her ability to perform the job during which time he/she may revert to his/her previous position at the discretion of the Employer or employee. During this period the employee will receive the rate of the job being performed. The sixty (60) day trial period may be shortened by mutual agreement with the Union.

During the trial period the employee may submit a request to the Chief Judge to be returned to his/her former classification. The Chief Judge has sole discretion to approve or deny the request. If the employee is unsatisfactory in the new position, the Employer may elect to return him/her to his/her former classification. In this case, notice and reasons for return shall be submitted to the Union, in writing, by the Employer, with a copy to the employee.

18.7: An employee who is assigned to a different task within the Court will not be demoted in rate of pay.

ARTICLE XIX
TRAINING

19.1: Whenever schedule and workloads permit, employees will be given the opportunity to learn the operation of the various equipment within the Court.

19.2: Training shall be performed by those qualified employees or qualified supervisors, and when training is available.

19.3: It shall be the judgment and decision of the Chief Judge or designee for determination on when, where, for whom and by whom training shall be performed.

19.4: An Annual certification supplement shall be paid according to the following schedule for certificates earned by the employee:

A.	CEO Certification	$400
B.	CER Certification	$450
C.	LEIN TAC	$450

LEIN TAC certification supplement limited to a max of two (2) employees per year as designated by the Court Administrator. Other related certifications only qualify with the annual approval of the Chief Judge or designated representative. Payment will be made on or about the first pay of January of each year.

ARTICLE XX
MILITARY LEAVE

20.1: Employees who are in some branch of the Armed Forces Reserve or the National Guard shall be paid a maximum of two weeks, seventy-five (75) hours, paid leave per year. The City shall comply with all applicable laws for all other situations.

ARTICLE XXI
LEAVE OF ABSENCE WITHOUT PAY

21.1: Leave of absence without pay for reasonable periods, at least ten (10) working days, may be granted an employee at the discretion of the Chief Judge. During such leave of absence the employee shall not lose their accumulated seniority; however, seniority shall not accrue while the employee is on leave of absence.

A leave may be extended upon approval of the Chief Judge. Extensions of leave(s) for periods of less than one (1) year may be granted up to a maximum of one (1) year from initial date of said leave(s).

State and/or Federal law will be applied for all other types of leaves.

21.2: Employees shall not be allowed to have absences without pay except as provided for in this Section. Any employee who is absent without pay will be subject to discipline up to and including discharge as follows: First Day/Incident — written oral reprimand; Second Day/Incident — written reprimand; Third Day/Incident — one day suspension without pay; Fourth Day/Incident — three day suspension without pay; Fifth Day/Incident — five day suspension without pay; Sixth Day/Incident - Discharge. This progressive discipline shall be for absences without pay that accrue during any given two (2)-year period. For any successive days off without pay, each day shall be considered separate incidences; any portions of days off without pay shall be considered one incident.

ARTICLE XXII
LEAVE FOR UNION BUSINESS

22.1: Members of the Union elected to attend a function of the Union such as conventions or educational conferences shall be allowed reasonable time off without loss of time or pay to attend such conferences and/or conventions limited to one (1) person, three (3) day maximum, non-accumulative per Fiscal Year.

ARTICLE XXIII
SICK LEAVE, FUNERAL LEAVE AND PERSONAL BUSINESS DAYS

23.1: Sick leave with pay shall be accrued to employees at the rate of one (1) work day for each full month of service. Sick days will be credited at the end of the first ten (10) working days of each month. Sick leave may not be used until an employee has been in the employ of the City for six (6) months or more. Sick leave shall not be considered as a privilege which an employee may use at his/her discretion but shall be allowed only in case of necessity and actual sickness or disability of the employee or because of illness to a family member of the employee's household. Sick leave may also be used in the event of a dental emergency of the employee. Sick leave may be taken after it is earned and credited to the employee. Sick leave may not be taken during the pay-period in which it is earned.

23.2: An employee shall be allowed five (5) consecutive calendar days for funeral leave (not chargeable to sick leave) for a death in the immediate family to attend the service.

Immediate family is to be defined as follows:

Mother, father, sister, brother, wife, husband, son, daughter, current mother-in-law, current father-in-law, stepmother, stepfather, grandchildren, grandparents, brother-in-law, sister-in-law, spouse's grandparents, son-in-law and daughter-in-law.

No more than two (2) employees from the same department shall be allowed one (1) sick day to attend the funeral of a deceased fellow employee and up to four (4) additional employees may use sick leave when requested to be pallbearers for a deceased fellow employee.

If a death occurs under these provisions while an employee is on vacation, upon notice his/her status will be changed from vacation to funeral leave.

23.3: Five (5) personal business days each fiscal year, not charged to sick leave, shall be allowed each employee. All personal business days off shall be subject to twenty-four (24) hour advance approval by the Chief Judge or designee except in case of emergency at the sole discretion of the Court Administrator. These days may be used during the fiscal year and shall be non-accumulative. These days shall be pro-rated when hired and when employment terminates. Upon termination, personal days that have been used in excess of pro-rated amount shall be deducted from final paycheck(s).

23.4: To receive compensation while absent on sick leave or funeral leave, the employee shall notify the Chief Judge or their designee prior to or within one-half (1/2) hour after the time scheduled for beginning shift. When an employee's sick leave absence is for three (3) continuous work days, the employee must file a physician's certificate to verify the sickness or injury that prevented the employee from working. The Chief Judge, or their designee, may also require such a physician's certificate from any employee whenever the employee's pattern of sick leave absences indicates the possibility of sick leave abuse. Employees who fail to file physician's certificates under this policy will not be paid for the sick leave absences involved.

23.5: Unused sick leave may be accumulated to a total of not more than two hundred forty (240) working days.

23.6: A request form for sick leave, funeral leave or personal business days must be filled out immediately upon the employee's return to work.

23.7: Sick leave shall be charged in not less than one-half (1/2) hour increments. Personal business days shall be charged in not less than one-half (1/2) hour increments.

23.8: Employee shall be eligible for two (2) bonus days for the non-use of sick leave in the twelve (12) month period July 1 to June 30. Said bonus days are to be non-accumulative.

23.9: An employee shall be eligible to have the option to cash in unused sick leave earned during the fiscal year at 50% of value. Employee shall make a request by June 30th of each year with payout being made on the first pay period ending after June 30th.

23.10: Employees may elect to turn in sick (maximum of 75 hours) and/or vacation (limited to remaining deductible after City's contribution) leave banks for deposit directly into employee's Health Savings Account or Health Retirement Account, not more than once per calendar year.

ARTICLE XXIV
WORKING HOURS

24.1: Employees shall have a fifteen (15) minute "break" in the a.m. and a fifteen (15) minute "break" in the p.m., or the first half and the second half of their regular shift, whichever may apply. Said "break" shall be taken at the job site whenever possible.

The normal work hours for Court employees shall be seven and one-half (7 1/2) hours per day, thirty-seven and one-half (37 1/2) hours per week, Monday through Friday.

ARTICLE XXV
OVERTIME

25.1: Overtime worked in excess of seven and one-half (7 1/2) hours on any one day, or on Saturday, shall be paid at one and one-half (1 1/2) times the regular hourly rate, except that an employee shall be paid double time for working on Sundays and/or holidays. The hourly rate of an employee shall be determined by dividing the base salary by thirty-seven and one-half (37 1/2) hours.

25.2: All overtime shall be kept as equal as possible. Overtime shall be defined as follows:

Scheduled — Notice posted prior to end of a shift or work week.

Unscheduled — Emergency call-in.

Continuation — Completion of a work assignment.

Overtime shall be first offered to full time, available and qualified employees.

In the absence of full time available qualified employees, the Employer shall have the right to assign overtime to non-bargaining unit employees or bargaining unit employees in the inverse order of their total seniority.

If an employee is off sick, they will not be called for overtime until they return to work on the next regular duty day.

ARTICLE XXVI
HOLIDAYS

26.1: The recognized paid holidays shall be:

New Year's Day, Martin Luther King Jr. Day, President's Day, Good Friday, Memorial Day, Independence Day, Labor Day, Veteran's Day, Thanksgiving, Day After Thanksgiving, Christmas Eve, Christmas Day, New Year's Eve, and Employee's Anniversary Day for a total of fourteen (14) days, or one hundred five (105) hours. Anniversary day must be taken within 90 days following the anniversary date.

26.2: When one (1) of the above-enumerated holidays shall fall on Sunday, then Monday shall be deemed the holiday. When one (1) of said holidays falls on Saturday, then Friday shall be deemed the holiday.

26.3: If an employee is required to work on any of the above-enumerated holidays, he/she will receive his/her holiday pay plus double time for all hours worked.

26.4: In order for an employee to be compensated for a recognized holiday, he/she must work the last scheduled work day before and the next scheduled work day after the holiday and he/she must be on the Court's active payroll. The only exception to this restriction is when the employee receives prior approval from management or presents a doctor's excuse.

ARTICLE XXVII
VACATIONS

27.1: The vacation book will come out on December 1st. If said date falls on a weekend or a holiday, it will revert back to the Friday prior to the date of December 1st.

The Funding Unit will credit yearly vacation time into the court employee's vacation bank on January 1st of each year according to the following schedule.

1 year or less	.193 (5 days)
After 1 year	.385 (10 days)
After 5 years	.577 (15 days)
After 10 years	.769 (20 days)
After 15 years	.962 (25 days)

Unused vacation days as of December 31st of each year shall be paid out on the first pay period ending after December 31st. An employee may carryover up to thirty-seven and a half (37.5) hours to the following year, if requested by December 31st of each year.

Vacation days shall be pro-rated when hired and when employment terminates. Upon termination, vacation days that have been used in excess of pro-rated amount shall be deducted from final paycheck.

27.2: If an employee becomes ill and is under the care of a duly licensed physician during his/her vacation, his/her vacation will be rescheduled. In the event his/her incapacity continues throughout the year, he/she will be awarded payment in lieu of vacation.

27.3: Vacations will be granted at such times during the year as are suitable, considering the wishes of employees on seniority basis.

27.4: During the last two (2) years of employment the employee may accumulate twenty-five (25) days toward retirement payoff.

27.5: Pay for one (1) week of vacation per fiscal year is optional after employee qualifies for third (3rd) week of vacation. Pay for two (2) weeks of vacation per fiscal year is optional after ten (10) years of employment. Pay for three (3) weeks of vacation per fiscal year is optional after fifteen (15) years of employment. For budgetary purposes, requests for pay in lieu of vacation during the months of May and June must be made in writing to the Department Head no later than April 30th.

ARTICLE XXVIII
UNION BULLETIN BOARDS

28.1: The Employer shall provide a bulletin board or adequate space on bulletin board which may be used by the Union for posting notices. Notices posted shall be of general Union interest and/or business and shall not be of a nature as strike notices, political announcements or endorsements, etc.

ARTICLE XXIX
RATES FOR NEW JOBS

29.1: When a new job is created and such job cannot be properly placed in an existing classification, the Employer will notify the Union prior to establishment of a classification and rate structure. If requested by the Union, the parties will meet to discuss the matter prior to implementation. After notice and implementation by the Employer, the Union, in the event the Union does not agree with the description and rate structure, shall notify the Court of its desire to negotiate within thirty (30) days after the initial notice by the Court.

ARTICLE XXX
TEMPORARY ASSIGNMENTS

30.1: Temporary assignments shall be at the discretion of the Chief Judge or designee. Whenever employees are assigned to perform work in a higher paid classification for two (2) hours or more, they shall receive the rate of pay of the higher paid classification from the first hour so worked. Employees assigned to work in lower classifications shall suffer no loss of pay.

Court recording is considered a clerk function, therefore does not qualify as a higher paid classification assignment.

30.2: While a clerk is court recording the other remaining clerks shall maintain that clerks principal duties and responsibilities.

30.3: Shall the main court recorder have to be off longer than three (3) weeks, the Chief Judge has the sole discretion to utilize other resources available.

ARTICLE XXXI
JURY DUTY

31.1: Any employee on the Employer's active payroll called to jury duty shall be paid the difference between his/her regular wage and jury duty payments (excluding mileage allowance) and all such jury duty time shall not be charged to the employee's sick leave or vacation time. The Employer shall not deny the right of jury duty to any employee.

ARTICLE XXXII
SAFETY COMMITTEE

32.1: The Steward of the Local Union shall appoint a union member to the safety committee. The union member will report to the Employer as needed during regular daytime working hours on issues of safety.

ARTICLE XXXIII
INSURANCE

33.1: The Employer through the Funding Unit shall pay the full premium for a $50,000 death benefit for all members of the bargaining unit, plus double indemnity for accidental death. Coverage shall become effective on the first day of the month following the employee's first month in which employment begins and will cease at midnight on the last day of employment.

33.2: Hospitalization:

A. The entire bargaining unit will be provided Simply Blue Health Savings Account with $3,500/$7,000 deductible (Single/Two-Person & Family):

The Hard Cap will be maintained, to ensure compliance with PA 152, Employees will be responsible for any amounts in excess of the annual maximums cap for single, two-person family, in compliance with PA 152. In the event this legislation is repealed, the hard cap dollars last published will continue to be used until modified by collective bargaining agreement.

Beginning January 1, 2024 - As soon as practical after January 1st of each year, the City shall make a deposit into the employee's Health Savings Account equal to 25% of healthcare insurance deductible to the extent IRS regulations permit. As soon as practical after July 1st of each year, the City shall make an additional deposit into the employee's Health Savings Account equal to 25% of healthcare insurance deductible to the extent IRS regulations permit. If any employee is on Medicare, the city is prohibited by IRS regulations from contributing into a Health Savings Account. The city will not be obligated to make any Health Savings Account or other type of funds available as a replacement.

A newly hired employee shall receive a prorated deposit calculated as of the first day of the month following the hire date.

Should the employee leave the employ of the City before the end of the calendar year for which the Health Savings Account deposits are credited, the employee shall repay the City a prorated amount to be deducted from their last paycheck or paychecks. Should the deduction be insufficient to cover the amount owed to the City, the employee shall directly pay the City the balance due.

B. The Employer through the Funding Unit will pay the cost of the full premium subject to employee cost sharing as provided by instituting a hard cap on Employer/employee costs pursuant to the amounts set forth in PA 152 of 2011 as adjusted annually. In the event this legislation is repealed, the hard cap dollars last published will continue to be used until modified by collective bargaining agreement.

The Employer through the Funding Unit shall pay the sum of five hundred ($500.00) dollars per month, paid monthly, to any employee who rejects said medical insurance in lieu of other medical insurance provided to a spouse, parent or previous employer. In the event that the medical insurance provided becomes unavailable after the election of this option, the Employer through the Funding Unit guarantees to provide the employee with his/her elected option for health insurance coverage as set forth above at the beginning of the next calendar month after the employee notifies the City, in writing, that the medical insurance provided is no longer available. Proof of medical coverage must be submitted to the Benefits Coordinator.

Health insurance or payment in lieu shall become effective on the first day of the month following the employee's first month in which employment begins and will cease on the last day of the month that employment terminates.

33.3: The Employer through the Funding Unit shall pay sick and accident benefits for illness or injury incurred off the job in the amount of sixty-five percent (65%) of the employee's base wage per week for a maximum of twenty-six (26) weeks within a twelve (12) month period measured forward from the date an employee uses any sick and accident benefits after utilization of all accumulated sick leave, provided the employee is hospitalized as an in-patient or out-patient for any length of time. When the illness or injury is not serious enough to warrant in-patient or out-patient hospital care, the above payments will apply except that the employee shall receive no payments for the first five (5) workdays after utilization of accumulated sick leave (maximum of twenty-five (25) weeks payment). Sick time and vacation time will not be earned while the employee is off on such sick and accident benefits. Coverage shall become effective on the first day of the month following the employee's first month in which employment begins.

If an employee cannot perform their normal duties through illness or injury relating to off-duty circumstances, the employee, after seven (7) calendar days, may be given the opportunity for thirty-seven and one-half (37-1/2) hour light duty at the discretion of the employer. Eligibility for such light duty assignment is subject to a certificate from a physician so allowing. The "light duty, 37-1/2 hour shift assignment" will be scheduled as follows: Monday through Friday, 8:00 a.m. to 4:30 p.m. with one hour for lunch. Daily duties will be assigned by the Department Head. Duties may be assigned anywhere within City operations.

33.4: <u>Optical</u>. The Employer through the Funding Unit shall pay full premium for optical insurance for all employees including family. This optical insurance shall be Blue Cross/Blue Shield.

Optical insurance shall become effective on the first day of the month following the employee's first month in which employment begins and will cease on the last day of the month that employment terminates.

33.5: Dental Insurance. The Employer through the Funding Unit shall provide the Blue Cross/Blue Shield plan.

Dental insurance shall become effective on the first day of the month following the employee's first month in which employment begins and will cease on the last day of the month that employment terminates.

33.6: Health Incentive. The Employer through the Funding Unit desires to encourage healthy lifestyle practices for all employees and will provide economic incentive to each voluntary participant in health or wellness programs of $250.00 annually paid on September 1st or as soon as practical thereafter. The wellness incentive shall not be part of final average compensation.

To be eligible to apply for this incentive, employees cannot be on probation and are required to provide copies of receipts, agreements or other evidence of enrollment, purchase or participation in programs. Eligibility is subject to final approval of the City Manager.

ARTICLE XXXIV
WORKERS' COMPENSATION

34.1: Each employee shall be covered by the applicable Workers' Compensation Laws. The Employer further agrees that an employee being eligible for Workers' Compensation income will receive, in addition to Workers' Compensation, an amount paid by the City equal to the difference between Workers' Compensation and 80% of gross pay based on the number of hours in the employee's normal work week from date of injury, without loss to sick days.

If there is a change in Workers' Compensation laws which affect the payments in this section, this section shall be immediately renegotiated.

34.2: The foregoing supplementary income to Workers' Compensation shall be paid for a period not to exceed forty-eight (48) calendar weeks.

34.3: Workers Compensation Statute MCLA 418.161 (1) will prevail for any employee who is eligible for a disability pension; i.e., the language dealing with like benefits in Article MCLA 418.161 (1) (c) will apply to members of TPOAM.

34.4: The Employer may require that employees authorize their doctors to provide specific and detailed medical data concerning their injury/illness for which payment is requested under this article directly to the Employer. As requested in writing by the Court Administrator, periodic, specific and detailed updates may be provided by the attending doctor concerning such injury/illness.

34.5: The Employer retains the right to require that the employee who is receiving payments under this article submit to an examination from a doctor or specialist appointed by the Employer provided that the cost is borne by the Employer. Such examination shall relate to the injury/illness for which payment is requested under this Article. If the Employer's physician disagrees with the opinion of the employee's physician, both doctors will agree on a third doctor whose opinion will decide the dispute.

34.6: To be eligible for payments under this Article, the employee with an attending physician's certificate returning him/her to light duty must accept and perform the limited duty assignment directed by the Department Head and must report for limited duty on the normal work schedule. Said assignments may be in a City Department other than which the employee normally works, preferably within the bargaining unit, if possible. Employees assigned to light duty shall not be permitted to work overtime. If an employee cannot perform their normal duties through illness or injury relating to duty circumstances, the employee, after seven (7) calendar days, may be given the opportunity for thirty-seven and one-half (37-1/2) hour light duty at the discretion of the employer. Eligibility for such light duty assignment is subject to a certificate from a physician so allowing. The "light duty, 37-1/2 hours a week" will be scheduled as follows: Monday through Friday, 8:00 a.m. to 4:30 p.m. with one hour for lunch. Daily duties will be assigned by the Court Administrator. Duties may be assigned anywhere within Court operations.

ARTICLE XXXV
PENSION AND OTHER POST-EMPLOYMENT BENEFITS

35.1: All payments for non-duty disability and retirement premium sharing will be automatically deducted from the member's bank account on the first of every month. Non-sufficient funds will result in fees and a failure to pay will result in termination of healthcare coverage.

35.2: For employees hired before July 1, 2020 the Employer through the Funding Unit shall provide retirement pension benefits as provided in the rules and regulations of the Michigan Municipal Employees Retirement System (MERS). Specific terms and plan benefits are written into the Administrative Service Agreement by MERS.

Additionally, the employee shall participate in the 401(a) Defined Contribution plan with the funding unit contributing an amount equal to five percent (5%) of base wages. If an employee voluntarily contributes at least two percent (2%) of base wages into the 401(a) Defined Contribution Plan or the 457 Plan, the funding unit will match the employee contribution with an additional contribution equal to two percent (2%) of base wages to a maximum of three percent (3%) into the 401(a) Defined Contribution Plan. The funding unit's total maximum contribution shall be " eight percent (8%) of base wages. Employees shall be 100% vested in the 401(a) plan after five (5) years of service.

Employees hired after July 1, 2020 shall not participate in the funding unit's defined benefit pension plan. The employee shall participate in the 401(a) Defined Contribution Plan, with the funding unit contributing an amount equal to seven percent (7%) of base wages. If an employee voluntarily contributes at least two percent (2%) of base wages into the 401(a) Defined Contribution Plan or the 457 Plan, the funding unit will match the employee contribution with an additional contribution equal to two percent (2%) of base wages to a maximum of three percent (3%) into the 401(a) Defined Contribution Plan. The funding unit's total maximum contribution shall be ten percent (10%) of base wages. Employees shall be 100% vested in the 401(a) plan after five (5) years of service.

35.3: Health Retirement Account: Employees shall not be entitled to retiree health insurance after retirement. The employer through the Funding Unit shall establish a health retirement account for employees and shall contribute an amount equal to five percent (5%) of the base wages.

35.4: Death Benefit: Upon retirement or deferred retirement of an employee, the employer through the Funding Unit will continue a $10,000 death benefit for that retiree at the Funding Unit's expense. Employees hired after February 17, 2009, shall not be entitled to the death benefit.

ARTICLE XXXVI
CALL BACK TIME

36.1: A call back is defined as a call in of an employee for duty after he/she has reported off duty and before his/her next regularly scheduled tour of duty.

ARTICLE XXXVII
NO STRIKE CLAUSE

37.1: The parties hereto recognize that it is essential for the health, safety, and public welfare to the Employer that services to the public be without interruption. Any strike of the Employees entered into or called for by the Union shall constitute a breach of this Agreement and abrogate the obligations of the Employer hereunder. The Union further agrees that it and all of the bargaining unit members shall not engage in any strikes, stoppages of work or any acts which may interfere in any manner or to any degree with the continuity of the service.

ARTICLE XXXVIII
MANAGEMENT RIGHTS

38.1: In accordance to MCR 8.110, the Union recognizes that the 38th District Court retains the sole right to manage its business, including the right to decide the number and location of departments and divisions, the types of machines and other equipment, the kinds and numbers of services and the scheduling of services to maintain order and efficiency in its departments and divisions, to hire, layoff, assign, transfer and promote employees and to determine the starting and quitting time and the number of hours to be worked subject only to such regulations and restrictions governing the exercise of these rights as are expressly provided in this Agreement and only to the extent such provisions are in conformance with the Constitution and laws of the United States and the State of Michigan.

38.2: The Employer has the right to determine hours of work, work schedules including starting and quitting times, and overtime work in a manner most advantageous to the Employer. The Employer has the right to determine the methods and processes by which such work is performed and to solely determine if such work is to be performed.

38.3: The Employer has the right to promulgate reasonable rules and regulations affecting the employees covered by this Agreement.

38.4: The Employer has the right to hire, select and direct the workforce and to assign, promote and transfer employees. The Employer has the right to determine the duties and work assignments of employees and to discipline and discharge for just cause employees covered by this Agreement. The Employer has the right to lay off personnel in order to improve departmental efficiency or due to a lack of work or funds.

38.5: The Employer shall retain as management rights any and all powers regarding wages. hours and other terms and conditions of employment not restricted by the express terms of this Agreement.

38.6: The Employer has the right to contract out any work it deems necessary or desirable according to the dictates of good management and business practice and/or is in the best interest of the citizens served.

38.7: Internships, High School Programs, Volunteer Programs will be utilized with-in the 38th District Court. These programs may last approximately three to four months or longer; provide students/adults with hands-on work experience directly related to the Criminal Justice System.

These programs allow those interested in justice an opportunity to explore criminal justice/law enforcement/ political career and local community options as well as develop personal and professional skills.

ARTICLE XXXIX
UNION RIGHTS

39.1: The parties agree that there shall be no discrimination against any employee by reason of race, creed, color, age, sex, national origin, or political affiliation.

39.2: The Employer agrees that there shall be no discrimination against any member of the bargaining unit by reason of membership in the Union.

39.3: The Employer agrees that its enforcement of discipline will be fair and for just cause.

ARTICLE XL
MISCELLANEOUS PROVISIONS

40.1: Residency. All members of the bargaining unit shall reside in the State of Michigan within fifty (50) miles of the nearest boundary of the 38th District Court.

40.2: The Employer may require that employees submit to physical and mental tests and examinations by a doctor selected by the Employer when such tests and examinations are considered to be of value to the Employer in maintaining a capable work force, employee's health and safety, etc., provided, however, that the Employer will pay the cost of such tests and examinations.

40.3: Any licenses or certificates, which are job related, shall be provided for by the Employer, but must have prior approval of the Chief Judge or designee.

40.4: The Employer shall reimburse employees for tuition and books for any classes attended by the employee, provided said classes are job related and beneficial to the interests of the Employer. The Chief Judge or designee shall have sole discretion as to the job relatedness of any such class and the benefit to the interests of the Employer. Reimbursement under this section shall not be made until the employee submits proof of passing said class ("C" or better) and shall not be made until the employee signs an agreement which promises that the employee shall repay said reimbursement to the Employer if the employee leaves the employ of the Court within two (2) years of the completion of said class.

Such repayment will not be owed by an employee who leaves his or her employment because of layoff, medical illness, involuntary military service, death or disability retirement.

40.5: There will be established a committee consisting of the Union Steward or designee, and the Chief Judge or designee to meet at intervals of approximately sixty (60) days to solve contract problems or explore matters of mutual benefit. This will serve to better relations between the parties.

40.6: The parties recognize that it is desirable to have accurate job descriptions for each classification covered by this Agreement. it is further recognized that the job descriptions may not be accurate or complete at all times. The Employer will provide, upon written request from the Union, copies of the job descriptions that are in existence at the execution of the contract.

Thereafter, if a new, revised, or reissued job description is created by the Employer, a copy will be provided to the Union. in the event that a change in a job is substantive, then the Union may request to negotiate the impact of the change in the job.

40.7: The parties agree that this Agreement constitutes the entire agreement between them relative to wages, hours and other terms and conditions of employment. The Union and the Employer for the life of this Agreement, unqualifiedly waive the right to further collective bargaining with respect to any subject, even though such subject matter may not have been within the knowledge or contemplation of either or both parties at the time that they negotiated or signed this Agreement. The parties may, by written mutual agreement, amend, modify, or add to this Agreement.

ARTICLE XLI
TERMINATION AND MODIFICATION

This Agreement shall continue in full force and effect until 11:59 p.m., June 30, 2026.

41.1: If either party desires to terminate this Agreement, it shall give written notice of termination sixty (60) days prior to the termination date. If neither party shall give notice of amendment as hereinafter provided, or if each party giving a notice of termination withdraws same prior to termination date, this Agreement shall continue in effect from year to year thereafter subject to notice of termination by either party on sixty (60) days written notice prior to the current year's termination date.

41.2: If either party desires to modify or change this Agreement, it shall give written notice of amendment sixty (60) days prior to the termination date or any subsequent termination date, in which event the notice of amendment shall set forth the nature of the amendment or amendments desired. If notice of amendment of this Agreement has been given in accordance with the paragraph, this Agreement may be terminated by either party on ten (10) days written notice of termination. Any amendments which may be agreed upon shall become and be part of this Agreement without modifying or changing any of the other terms of this Agreement.

41.3: Notice of Termination or Modification. Notice shall be in writing and shall be sufficient if sent by certified mail addressed, if to the Union, to TPOAM President, and if to the Employer, addressed to the Chief Judge or to any such address as the Union or the Employer may make available to each other.

41.4: Should any part hereof or any provision contained be rendered or declared invalid by reason of existing or subsequent enacted legislation or by any decree of a Court of competent jurisdiction, such part or portion of this Agreement which becomes invalidated as aforesaid shall be subject to immediate negotiation; however, the remainder of the contract shall remain in full force and effect.

ARTICLE XLII
EFFECTIVE DATE

42.1: Agreement shall become effective July 1, 2023 and shall remain in full force and effect until June 30, 2026.

ARTICLE XLIII
SALARY AND WAGES

43.1: The hourly wages for the respective TPOAM classifications shall be as follows:

	7/1/2022	7/1/2023	7/1/2024	7/1/2025
Clerk IV	25.63	26.91	28.26	29.10
Clerk III	24.92	26.17	27.47	28.30
Clerk II	24.09	25.29	26.56	27.36
Clerk I	23.12	24.28	25.49	26.25

43.2: Clerical personnel begin as Clerk I; at the end of two (2) years, a Clerk I becomes a Clerk II. At the end of the clerical employee's third (3rd) year, the employee becomes a Clerk III. At the end of the clerical employee's fifth (5th) year, the employee becomes a Clerk IV. This is used to clarify years of service only, not classification.

43.3: The 38th District Court will allow all clerical employees the opportunity to be state Certified Electronic Operators (CEO'S).

IN WITNESS THEREOF, the parties have thereunto set their hands and seals this 20th day of ~~July~~ November, 2023.

38th DISTRICT COURT

Kathleen Galen 11/16/23
Chief Judge

Mariah Walton
City Manager

TECHNICAL, PROFESSIONAL AND OFFICEWORKERS ASSOCIATION OF MICHIGAN

Christy Barney 11/16/23
President

Steve Sellers 11/16/23
Business Agent